

was continuous for a period of more than five (5) years; (2) their use was open and -notorious; and (3) hostile and adverse to Plaintiffs. Permissive or neighborly use defeats a claim for a prescriptive easement. Plaintiffs allege that Cross-Complainants use of the Travelled Way over and across Plaintiffs' property has always been permissive. First, beginning in 1978 parcels 1 and 2 were owned by the sub divider's sister and her husband until 2018, and Cross-Complainant's have not submitted any evidence that E. Neuharth was hostile of adverse to his own sister or her husband. Since Plaintiffs bought parcel one in 2018, the Cross-Complainants and Plaintiffs had been friendly and neighborly with Plaintiffs allowing Cross-Complainants to cross over parcel 1 to access parcels 3 and 4 and the Mudd property. Apparently, the parties all worked together to install an electric gate on parcel one at the starting point for the parcel 1 easement. Because there is a significant factual dispute as to a critical element for the creation of a prescriptive easement, namely: adverse, hostile and non-permissive use, the Motion for Summary Adjudication is denied. All objections made are overruled. Request for Judicial Notice by Cross-Complainants as to Exhibits A-J is Granted. Counsel for Plaintiffs is directed to prepare an Order After Hearing.

5. CU0001664 Jefferson v. Heating-Cooling
Motion to Compel Third Party Group to Comply with Deposition Subpoena for Production of Business Records and for sanctions is GRANTED. The Court will sign the Proposed Order submitted with the motion.
6. CU0002023 Robinson v. Shellpoint
Shellpoint's Demurrer to Plaintiff's First Amended Complaint is SUSTAINED with leave to amend. Plaintiff's untimely opposition was considered only in the respect that Plaintiff alleges she is in possession of facts to survive a demurrer and the Court will give her one last opportunity to amend and allow the filing of a Second Amended Complaint. Plaintiff is ordered to file the Second Amended Complaint not later than August 6, 2026. Counsel for Shellpoint to prepare an Order After Hearing.
7. PR0001087 Petition of AG
The Order Approving Compromise of a Minor's Claim
Is approved and the Court will sign the Order filed with the Petition.